

Mutual Non-Disclosure Agreement

I. THE PARTIES

This Non-Disclosure Agreement, hereinafter known as the "**Agreement**", created on this day , is between , hereinafter known as "**Party A**", and the listing owner of (Listing ID:), hereinafter known as "**Party B**", and collectively known as the "**Parties**".

WHEREAS this Agreement is created for the purpose of preventing the unauthorized disclosure of confidential and proprietary information.

The Parties Agree to the Following:

II. TYPE OF AGREEMENT

This Agreement shall be **Mutual**, whereas the Parties shall be prohibited from disclosing confidential and proprietary information that is to be shared between one another.

III. RELATIONSHIP

Party A's relationship to Party B can be described as , and Party B's relationship to Party A can be described as .

IV. DEFINITION

For the purposes of this Agreement, the term "**Confidential Information**" shall include, but not be limited to, documents, records, information and data (whether verbal, electronic or written), drawings, models, apparatus, sketches, designs, schedules, product plans, marketing plans, technical procedures, manufacturing processes, analyses, compilations, studies, software, prototypes, samples, formulas, methodologies, formulations, product developments, patent applications, know-how, experimental results, specifications, and other business information relating to Party B's business, assets, operations, or contracts.

Confidential Information also includes any work products, studies, or materials prepared by or in the possession or control of the other Party that contain or reflect such Confidential Information.

Confidential Information does **not** include:

- Information that is already publicly known.
- Information received legally from a third party.
- Information independently developed without use of confidential data.

V. OBLIGATIONS

The receiving Party shall hold and maintain the Confidential Information in strictest confidence for the sole and exclusive benefit of the disclosing Party.

The receiving Party shall carefully restrict access to Confidential Information to employees, contractors, and third parties as is reasonably required.

VI. TERM

This Agreement shall remain in effect for a period of years from the date of signing.

VII. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of .

VIII. SIGNATURES

The Parties agree to the terms and conditions of this Agreement and execute this Agreement as of the date first written above.

Party A

Name:

Signature: _____

Date:

Party B

Name:

Signature: _____

Date: